

**SUBSTITUTE FOR  
HOUSE BILL NO. 4848**

A bill to amend 1976 PA 451, entitled  
"The revised school code,"  
(MCL 380.1 to 380.1852) by adding section 1509.

**THE PEOPLE OF THE STATE OF MICHIGAN ENACT:**

1       **Sec. 1509. (1) The department shall provide to school**  
2       **districts, intermediate school districts, public school academies,**  
3       **and nonpublic schools a notice containing information regarding**  
4       **section 213b of the Michigan penal code, 1931 PA 328, MCL 750.213b.**  
5       **The notice from the department must contain information about the**  
6       **requirements of this section, a copy of or a link to section 213b**  
7       **of the Michigan penal code, 1931 PA 328, MCL 750.213b, and contact**  
8       **information for the office of school safety within the department**  
9       **of state police for questions about section 213b of the Michigan**



1 penal code, 1931 PA 328, MCL 750.213b. The department is not liable  
2 in a civil action that arises out of the notice provided in this  
3 subsection.

4 (2) School districts, intermediate school districts, public  
5 school academies, and nonpublic schools shall post the notice  
6 described in subsection (1) on the homepage of the school  
7 district's, intermediate school district's, public school academy's  
8 or nonpublic school's website.

9 (3) The board of a school district or intermediate school  
10 district, board of directors of a public school academy, or board  
11 of a nonpublic school shall implement a policy to educate the  
12 individuals described in subsection (4)(a) about section 213b of  
13 the Michigan penal code, 1931 PA 328, MCL 750.213b.

14 (4) The board of a school district or intermediate school  
15 district, board of directors of a public school academy, or board  
16 of a nonpublic school shall electronically provide free educational  
17 materials on sextortion from the National Center for Missing and  
18 Exploited Children, the Federal Bureau of Investigation, or the  
19 Office for Victims of Crime. All of the following apply to the free  
20 educational materials on sextortion electronically provided under  
21 this subsection:

22 (a) The board of a school district or intermediate school  
23 district, board of directors of a public school academy, or board  
24 of a nonpublic school shall electronically provide the free  
25 educational materials on sextortion to all of the following  
26 individuals:

27 (i) School personnel employed by or at a school operated by the  
28 school district, intermediate school district, public school  
29 academy, or nonpublic school.



(ii) Students who are in any of grades 6 to 12 and who are enrolled in the school district, intermediate school district, public school academy, or nonpublic school.

(iii) Parents and legal guardians of the students described in subparagraph (ii).

(b) For the board of a school district or intermediate school district or board of directors of a public school academy, the free educational materials on sextortion must be electronically provided to individuals described in subdivision (a) after a meeting of the board or board of directors in which the educational materials were discussed and shared publicly.

(c) For the board of a nonpublic school, the free educational materials on sextortion must be electronically provided to individuals described in subdivision (a) after a meeting of the board in which the educational materials were discussed and shared publicly or at least 1 time per school year if a meeting described in this subdivision is not held.

(5) When electronically providing the educational materials on sextortion under subsection (4), the board of a school district or intermediate school district, board of directors of a public school academy, or board of a nonpublic school shall include a link to the notice described in subsection (1).

(6) As used in this section, "sextortion" means a form of child sexual exploitation in which an individual threatens another individual who is less than 18 years of age with the possibility of sharing a nude or sexual image of the individual who is less than 18 years of age with the public and demands additional sexual content, sexual activity, or money from the individual who is less than 18 years of age.